

TENTATIVE RULING

Case: **Cramer v. Extreme RVs of Davis, LLC**
Case No. CV2025-1930

Hearing Date: **August 26, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Philadelphia Indemnity Insurance Company's unopposed motion for leave to file a verified cross-complaint for interpleader is **GRANTED**. (Code Civ. Proc., §§ 386, 428.10, 428.50.)

The proposed cross-complaint for interpleader, attached as Exhibit 1 to the motion, is deemed filed as of the hearing date.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: August 26, 2026 Department Fourteen 9:00 a.m.

Motion to compel further responses to tax-related discovery:

Plaintiff Felipe Estrada’s motion to compel further responses to tax-related discovery is **GRANTED IN PART**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) As to defendant Daniel Navarrete Garcia’s response to interrogatory no. 15, the Court finds that defendant has failed to justify his objections. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

As to the other discovery responses, the Court declines to require defendants to provide further responses. Specifically, while the “statutory tax return privilege is not absolute,” “[t]he privilege will not be upheld” in three specific circumstances. (*Weingarten v. Superior Court* (2002) 102 Cal.App.4th 268, 274.) Plaintiff asserts that the third exception applies, such that this Court should compel defendants to provide their tax returns in response to his discovery requests. (See Ps & As, pp. 9-10.) However, this exception “is narrow and applies only when warranted by a legislatively declared public policy.” (*Weingarten, supra*, 102 Cal.App.4th at p. 274.) Indeed, a “trial court has broad discretion in determining the applicability of a statutory privilege.” (*Ibid.*) While plaintiff relies upon *Li v. Yan* (2016) 247 Cal.App.4th 56 and *Weingarten, supra*, 102 Cal.App.4th, the Court finds the circumstances presented in these cases distinguishable from the record here. (See *Li, supra*, 247 Cal.App.4th at pp. 66-69; *Weingarten, supra*, 102 Cal.App.4th at pp. 275-277.)

Defendant Garcia is **DIRECTED** to serve a further response to special interrogatory no. 15 by **September 16, 2026**.

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).) As the Court is only ordering a further response to one special interrogatory, it finds that defendants acted with substantial justification in opposing the motion.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motions to be relieved as counsel:

Melanie De Marco of BPE Law Group P.C.’s unopposed motions to be relieved as counsel for defendants Rosa Hernandez De Anda and Daniel Navarrete Garcia is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a**